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Case Number: 22STCV18163 Hearing Date: August 27, 2026 Dept: 735

Anabi Oil Corporation v. Envision WC

Toy Re, LLC, et al.

(1) Defendant/Cross-Defendant Envision WC Toy Re LLC

("Envision")'s Motion to Compel Cross-Complainant Huy Quoc Dang d/b/a West Covina Shell's Further Responses to Requests for Admissions (Set Two) (CRS 4089)

(2) Defendant/Cross-Defendant Envision's Motion to Compel Cross-Complainant

D.S. Dang, LLC's Further Responses to Requests for Admissions (Set Two) (CRS 2224)

(3) Defendant/Cross-Defendant Envision's Motion to Compel

Cross-Complainant West Covina Shell Auto Care, Inc.'s Further Responses to Requests for Admissions (Set Two) (CRS 4306)

On

May 30, 2025, Envision served three separate sets of Requests for Admission (Set Two) on cross-complainants Huy Quoc Dang d/b/a West Covina Shell ("Dang"), D.S. Dang LLC ("LLC") and West Covina Shell Auto Care, Inc. ("West Covina Inc.")(collectively "Cross-Complainants")(Motions, Lee Dec., ¶12.)

On June 30, 2025, Envision received responses from all three cross-complainants to the RFAs (set two).

(Id. at ¶13.)

Meet

and Confer Requirement

Prior

to filing these three motions to compel further responses from Dang, LLC and West Covina Inc. on August 18 and 19, 2025 (collectively the “MTCFs”), Envision served a meet and confer letter on Cross-Complainant’s counsel, Roman Vu. (Motions, Lee Dec., ¶4.) In response, Vu served three separate meet and confer letters on August 18, 2025, addressing Envision’s substantive claim that the responses were defective. (Id. at ¶8.) Vu failed to respond to Envision’s request for an extension of the August 19, 2025 deadline to file these MTCFs. (Id. at ¶10.) Based on this correspondence between the parties, Envision satisfied the pre-filing meet and confer requirement under Code of Civil Procedure section 2033.290 subdivision (b)(1).

Discussion

Envision argues Cross-Complainants’ responses to the RFAs (Set Two) contain improper and baseless objections and their statements of inability to comply fail to comply with Code of Civil Procedure section 2033.220. Cross-Complainants filed oppositions to the MTCFs but did not file separate statements in support of the oppositions.

MTCF as to Dang (RFA Nos. 50-100)

Dang’s responses to RFA Nos. 50-100 consist of an admission, a denial or a statement of inability to comply combined with one or more of the following objections: (1) an objection that the RFA is vague; (2) the RFA requires a legal conclusion or legal interpretation of a document; and (3) the RFA assumes facts not in evidence.

Each

of the objections fails as discussed below.

However, the statements of inability to admit or deny comply with the requirements under Code of Civil Procedure section 2033.220 subdivision (b)(3) and (c), which require that a party “[s]pecify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge” and “state in the answer that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter.” (Code Civ. Proc.,

§2033.220, subds. (b)(3) and (c).)

The

RFAs are not vague or ambiguous. Dang

asserts certain terms are vague and ambiguous but they are not so vague and ambiguous that he could not respond. Any objection based on inability to deny was based on lack of information. In

addition, Dang refused to meet and confer in good faith. A good faith meet and confer could have resolved any questions he had about the terms he claims are vague and ambiguous.

Objections

to RFAs on grounds that they call for legal conclusions are improper. When a party is served with a request for admission concerning a legal question properly raised in the pleadings, the party cannot object simply by asserting that the request calls for a conclusion of law. The party should make the admission if it can do so and does not in good faith intend to contest the issue at trial, thereby setting at rest a triable issue. Otherwise, the party should set forth in detail the reasons why the party cannot truthfully admit or deny the request. It is not the duty of the party to provide legal reasoning or theory behind that contention.

The

RFAs do not require Dang to make any legal conclusions or interpret the legal effects of documents, nor do they ask Dang to admit or deny the legal reasoning or theory upon which his contentions are based.

A number of the RFAs, including RFA Nos. 51, 52 and 56 through 74, ask Dang to admit or deny whether certain documents contain specific language or statements. The RFAs also use terms in their lay sense and do not require Dang to admit or deny a legal conclusion. Thus, for example, Envision's request that Dang admit or deny whether certain transactions were "conditioned" on "assumption" of obligations is not seeking a legal conclusion but Dang's response as a lay person.

"Assumes

facts not in evidence" is also an invalid objection to RFAs. There is no requirement that an RFA be based on facts that are supported by evidence.

Dang fails to cite any authority imposing such a requirement.

Envision's

Motion to Compel Further Responses is granted.

Dang is ordered to serve further responses within 20 days.

MTCF as to West Covina Inc. (RFA

Nos. 50-100) and MTCF as to LLC (RFA Nos. 49-101)

The RFAs propounded on West Covina

Inc. and LLC are substantively identical to those served on Dang. West Covina Inc. and LLC's responses to the

RFAs are also substantively identical to Dang's, consisting of an admission, a denial

or statement of inability to admit or deny combined with one or more of the

following objections: (1) an objection

that the RFA is vague; (2) the RFA requires a legal conclusion or legal

interpretation of a document; and (3) the RFA assumes facts not in

evidence.

For

the same reasons stated in connection with the MTCF as to Dang, the MTCFs as to

West Covina Inc. and LLC are granted.

Cross-Complainant West Covina Inc. and LLC are ordered to serve further responses

within 20 days.

CONCLUSION

The

court grants Cross-Defendant Envision WC Toy Re, LLC's Motion to Compel Cross-Complainant

Huy Quoc Dang dba West Covina Shell's Further Responses to Requests for

Admission (Set Two). Cross-Complainant

Dang is ordered to serve further responses within 20 days.

The

court grants Cross-Defendant Envision WC Toy Re, LLC's Motion to Compel

Cross-Complainant D.S. Dang, LLC's Further Responses to Requests for Admission

(Set Two). Cross-Complainant D.S. Dang,

LLC is ordered to serve further responses within 20 days.

The

court grants Cross-Defendant Envision WC Toy Re, LLC's Motion to Compel

Cross-Complainant West Covina Shell Auto Care, Inc.'s Further Responses

to Requests for Admission (Set Two).

Cross-Complainant West Covina Shell Auto Care, Inc. is ordered to serve

further responses within 20 days.

Cross-Defendant

Envision shall give notice.